

Evergreen By Design

Terms of Services

Policy date: 6/13/2023

Ref# 3e46d4b188e5.v1.0

Evergreen By Design is proud to serve you under these terms of services. These terms of services must be followed by any client signing up with Evergreen By Design for their website design and management needs.

Any reference to Evergreen By Design in this terms of services document also assumes that represents the owner of Evergreen By Design as well.

Any reference to “you or your” assumes that this document refers to you as my client.

All pages within this document of the terms of services are part of this document as a whole and when you agree to the terms of services of this document you agree to all pages with the same policy date (m/d/y) and reference number (Ref#).

These terms of services may be subject to change in the future. You will be notified about any future changes by email before the changes are implemented.

Website service payment beyond the new terms of services will be your agreement to uphold the new terms of services.

Please feel free to contact me about any of these terms of services. (541) 378.5563

Website Design

- (A) Website design is a one-time payment that is due before design of said website can begin.
- (B) Website design time frames vary depending on website size, email automations, and tasks.
- (C) Evergreen By Design cannot be held liable for presumed income or revenue that might have come from said website during design, maintenance, or if your website temporarily goes down. This also includes cancelations and future revenue or income that your website might or would have accumulated.
- (D) All of Evergreen By Design's website designs are a copyright of Evergreen By Design and cannot be duplicated, transferred, or copied in anyway.
- (E) Every website designed by Evergreen By Design will have a "Website Powered by Evergreen By Design" at the bottom of their website signifying that these websites are property of Evergreen By Design and fall under the Website Design-(d) terms and conditions set by Evergreen By Design.
- (F) You are responsible for providing content for your website. This content can be written, video, audio, images.
- (G) Evergreen By Design cannot be held responsible for the content you put on website, whether that is the lack of content given or revenue loss because of content on website.

Refund Policy

- (A) Refunds are only given at Evergreen By Design's approval. No third party or client may force Evergreen By Design to issue a refund.
- (B) Refunds will not be given due to lack of content provided for said website.
- (C) Refunds will not be given if website goes down temporarily. I do make it a priority to get any website that has gone down back up asap!
- (D) Refunds will not be given if you decide to cancel your plan. See Canceling Policy-(b)
- (E) Refunds will not be given for no sales or lack of sales on your website.

(F) Refunds will not be given for no or lack of subscribers for email marketing.

Payment Policy

- (A) Payment must be made in FULL before website design and services can begin. This included both monthly service and website design fee.
- (B) Monthly payments start on the date of signing up and continue on that numbered date for each month of the year. This payment continues until you (the client) have emailed me a written request to cancel.
- (C) Non-Payment of the monthly website service fee will result in your website being put into Maintenance mode. This Maintenance mode will start 3 days after payment has failed. You have 30 days from the time you missed your first payment before all services will be involuntarily canceled and your account closed. This will include shutting down hosting services, removal of databases and terminating your professional email. Evergreen By Design is not responsible for any information lost because of client failure to pay monthly website services fee.
- (D) An estimated 3% credit card fee will be applied to each payment.

Domain Policy

- (A) Upon signing up with Evergreen By Design you can get a TLD (top-level domain) of your choosing. The Domain you chose must not exceed \$15 per year in cost.
- (B) The DOMAIN IS YOUR'S (PROPERTY OF THE CLIENT) and can be released for transfer to you at any time after services have ended with Evergreen By Design. The domain is yours to take with you even if you decide to cancel your plan or if your plan was involuntarily canceled due to non-payment. Evergreen By Design is not responsible for said transfer of domains as this will be a transfer into your own registrar, but Evergreen By Design will send an email containing "auth" transfer code and will unlock your domain for said 30 days upon request by you.
- (C) Evergreen By Design is not responsible for transfer fees into your (the client's) registrar. Domains will be held for you up until renewal time (ending domain payment period for the year). If you have not transferred said domain or have made no contact about said domain at that point in

time, I will release the domain back to the public registrar which can be purchased by anyone.

- (D) Evergreen By Design cannot be held liable in any way (monetary or legally) due to your domain being released back into the public. This includes failure on domain transfer payment, lack of knowledge of how to transfer said domain into your (the client's) registrar, or misappropriation with "auth code" release and domain unlock request (i.e. someone gets this information through your email and takes your domain).
- (E) If you do have domains in other registrars, I do request those domains be brought to Evergreen By Design's registrar so I can manage said domain and payments of domain for you. I will cover all transfer fees of said domain into my registrar as long as they don't exceed \$15 per year.

Canceling Plans

- (A) You can cancel your plan at any time after 60 days upon signing up. There is no cancellation fee and upon canceling your domain can be transferred to a registrar of your choice. See domain policy-(B)
- (B) If you decide to cancel your plan then your website services will end at the start of the next payment period and your website will go offline at that time (unless you request your website to go offline sooner).
- (C) When you cancel your website service plan this cancels all services including hosting, email, and any other service managed by the plan.
- (D) When you cancel your plan, you cannot get the files on your server. These files are part of your website design and hosting and are terminated with hosting service.
- (E) All cancellations need to come in a written email which is both of our verifications that your plan has been canceled. In this email please include date of cancellation.

Website Maintenance and Updating

- (A) I will be updating your website every two weeks to make sure all security patches will be implemented.
- (B) If your website by chance should break, I will fix it asap (generally within 24 hours).

- (C) If I am on vacation and your website breaks and I am unable to get to your website until after vacation I Evergreen By Design can not be held liable for any income lost during outage of website. I do however take into consideration time that website is down and may refund half if not full months service if website is down for extended period of time. This refund is still solely at the discission of Evergreen By Design. See Vacation Time-(b)

Third Party Software Protection

- (A) To expedite the process of designing and managing your website I do use third-party software. While I have used this software for years, I do not control coding behind said third-party software. Therefore, Evergreen By Design can not be held liable if any third party software breaks or if any software used on your website becomes exploited. See Website Breakage-(a)

Third Party Platform Usage

- (A) Usage of other third-party platforms (accounts that you, the client, create), such as Google Analytics, Payment Gateways, etc. are strictly under your management and Evergreen By Design in no way can be held liable for any misuse, mismanagement, or loss of monetary gain due to management of said third party platforms. Evergreen By Design in no way holds ownership or is responsible for managing these third-party platforms.

Website Breakage

- (A) While it is one of the rarest things with my business it does happen from time to time that a website may break out of the blue. I can usually get a website back up and running within 24 hrs. of breakage.
- (B) Evergreen By Design can not be held liable for any monetary loss due to website breaking. As part of these terms and conditions you (the Client) agree that Evergreen By Design can use third party software to expedite website design and functionality.

Website Loss of revenue

- (A) Evergreen By Design cannot be held liable for any monetary loss (whether presumed or proven) from your website. This includes ad revenue, product

revenue, service revenue, affiliate marketing revenue, or third-party shop front revenue.

Owner Information on website and scam warning

- (A) The amount of information about yourself that you display on your website is totally up to you (the client). Evergreen By Design cannot be held responsible for any scam or misuse of your information on your website.
- (B) This information is verified through the content that you send me to put on your website, thus giving you control of how much information you want about yourself on your website.

Vacation Time

- (A) One of the things about having the one person who knows your website inside and out is that that person takes vacations from time to time. Hey, I am human. I will let all my clients know 7 days before I go on any vacation that is longer than 2 days.
- (B) During vacation time maintenance, design, and tech support can be unavailable until I get back. Evergreen By Design cannot be held liable for any revenue or monetary loss your website may have had during this time.

Email marketing

- (A) Evergreen By Design is proud to offer email marketing to my clients. Emails are sent out to your subscribers or customers in 1 to 3 business days so please plan accordingly. Evergreen By Design can not be held liable for emails not reaching certain inboxes, though I do incur a 99.6% hit for email inbox (not spam).
- (B) You are responsible for providing content for your emails to your customers and/or subscribers.
- (C) Evergreen By Design does not replace or “rollover” unused emails not sent that week.
- (D) There are no discounts for not using your email marketing system.

Hosting Policy

- (A) Hosting is included in all plans.

- (B) You will not have access to hosting as this is part of the managed service provided by Evergreen By Design.
- (C) If you choose to cancel your hosting service you also choose to cancel your database and files of your website as they are one and the same. Files, databases, and hosting is all property of Evergreen By Design.
- (D) If you incurred a non-payment and 30 days has passed from said non-payment then your hosting service will be shut down and database and files will be permanently deleted along with your account. See Payment Policy-(c)

Content Management

- (A) Content can be updated in accordance with the plan that you purchased. Content updating can take up to 1 to 3 business days so please plan accordingly.
- (B) You are responsible for creating all content for your website. This is written, images, audio, video.
- (C) Evergreen By Design can not be held responsible for the content that you put on your website. I do use stock images from time to time to help fill in the content gaps and for design. See Website Design-(g)

Website Access

- (A) Website access is only allowed in limited compacity with a Specialty Self-Management System. These systems give you access to a section of your website where the specialty system is controlled.

Changing Plans.

- (A) You may always upgrade your plan as needed.
- (B) You are eligible to downgrade your plan after 90 days from signing up service with Evergreen By design.

AdSense

- (A) Evergreen By Design cannot be held liable for any AdSense monetization. That includes presumed or actual revenue loss from AdSense.

- (B) AdSense is a third-party website monetization tool for websites which can generate revenue on your (the client's) website. Evergreen By Design does not control your AdSense platform nor can Evergreen By Design be held liable for any revenue loss from AdSense. Evergreen By Design is only responsible for placing the ads into your website.
- (C) AdSense Ad Rating is controlled by you as well. Evergreen By Design can not be held responsible for inappropriate or offensive ads being ran on your website. This is due to the fact that you (the client) are the one in control of your AdSense platform. See Google AdSense for more details.

Social Media Integration

- (A) Evergreen By Design is not responsible for maintaining your social media profiles and only provides a way for people to find your social media profiles on your website.
- (B) Evergreen By Design will NOT add content to your social media profiles and is not part of the website content management plan.
- (C) Evergreen By Design does not perform or provide any social media marketing.

Google Analytics Integration

- (A) Evergreen By Design is not responsible for setting up any Google Analytics account as this is your personal account to monitor traffic to your website.
- (B) Evergreen By Design is in no way affiliated with Google Analytics and this is considered a third-party software.
- (C) Management of Google Analytics is on you (the client). Evergreen By Design can't be held liable for any account loss.

Ecommerce Sites

- (A) Evergreen By Design cannot be held liable for any loss of revenue from your shop.
- (B) Evergreen By Design cannot be held liable for customer refunds, purchases, or any other monetary transactions on the website.
- (C) Ecommerce websites must comply with all GDPR compliant regulations and have a Privacy Policy for said website. I do direct you to links where you can create these documents easily for your website in the welcome packet.

- (D) Evergreen By Design is not responsible for any transactional email that failed to reach the inbox of a customer.
- (E) Ecommerce websites require a payment gateway for successful transactions (i.e PayPal, Stripe, Square, etc.). Evergreen By Design is not responsible for these third-party payment accounts. These are your personal accounts used to process payments and transactions and transfer money into your (the client's) bank account. Evergreen By Design is not responsible for any fees, misuse, tax information, account creation, maintaining payment gateway account, or anything associated with any payment gateway account. These accounts are managed solely by you (the client).

Professional Email

- (A) Premium plans and above can request a professional email for free. This is an email you@yourdomain.com. You will have access to this email for as long as you are with Evergreen By Design.
- (B) If you cancel your plan your emails and your professional email service does get terminated with the cancellation. These emails are not retrievable.

Search Engine Rankings

- (A) While Evergreen By Design does perform SEO techniques to optimize your website page or posting for search engines Evergreen By Design does not guarantee any search engine ranking position nor does Evergreen By Design have control over search engine rankings. Search engine rankings are based on numerous factors out of Evergreen By Design's control.
- (B) Evergreen By Design cannot be held liable for any presumed or actual monetary loss due to search engine rankings.

Marketing

- (A) Evergreen By Design is not responsible for any marketing of your (the client's) business or website.
- (B) Evergreen By Design does NOT perform any online marketing for your website. Online marketing is yours (the client's) responsibility!
- (C) Evergreen By Design can not be held liable for any presumed or actual monetary loss due to marketing.

